

District-Jamalpur.

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)**

Present:

Mr. Justice Md. Toufiq Inam

Civil Revision No. 4630 of 2007.

Md. Ismail Hossain.

----- Defendant-Petitioner.

-Versus-

Most. Feroza Begum being dead her legal heirs and
others.

----- Plaintiff-Opposite Parties.

Mr. Mohammad Ali Zinnah, Advocate

----- For the Defendant-Petitioner.

Mr. Md. Mosiul Alam with

Mr. Jamil Haq, Advocates.

----- For the Plaintiff-Opposite Parties.

Heard and Judgment Delivered On: 03.07.2025.

Md. Toufiq Inam, J.

This Rule was issued calling upon the opposite-party No. 1 to show cause as to why the impugned judgment and decree complained of in the petition should not be set aside and/or such other or further orders passed as to this Court may seem fit and proper.

The opposite-party No. 1, as plaintiff, instituted a suit for permanent injunction in the Court of Senior Assistant Judge, Jamalpur Sadar, Jamalpur, being Other Class Suit No. 223 of 2000, against the defendant No. 1, the present petitioner.

The relevant facts for disposal of this Rule are that the plaintiff purchased the suit property, as described in the schedule to the plaint, from one Ikrar Ahmed Khan and others by a registered deed dated 18.06.1971. Ikrar Ahmed Khan had earlier purchased the property

from Bashanta Kumar by a registered deed, and Bashanta Kumar was the successor of the original owner, Raj Chandra Das. The plaintiff initially entered into a contract for sale (bainapatra) with Ikrar Ahmed Khan and others. Since the said bainapatra was not properly performed and executed, the plaintiff instituted a suit for specific performance being No. 03 of 1972 against Ikrar Ahmed Khan and others and obtained a decree.

Subsequently, the plaintiff put the decree into execution by filing Execution Case No. 16 of 1974, obtained possession of the suit land through Court process, mutated her name, paid rents, and enjoyed peaceful possession of the property until the defendant No. 3 (present petitioner) attempted to dispossess her. Under these circumstances, the plaintiff filed the present suit praying for permanent injunction in respect of the property described in the plaint against defendant No. 3, who is the Petitioner before this Court.

The defendant Nos. 2 and 3 contested the suit by filing separate written statements denying the material allegations and contending, inter alia, that they never threatened to dispossess the plaintiff. Defendant No. 2, by virtue of a power of attorney dated 07.02.2000 from Raton Chandra Das (alleged son of Basanta Chandra Das), executed a bainapatra in favour of defendant No. 3-petitioner. Based on this, the defendants claimed that defendant No. 3 is in possession of the suit land and that the plaintiff has no right, title, or possession therein.

During trial, the learned trial Court framed four issues and examined six witnesses on behalf of the plaintiff, while the defendants examined four witnesses in support of their defence. Upon conclusion of the trial, the trial Court, by its judgment dated 17.09.2006, decreed the

suit and passed an order of permanent injunction restraining the defendants from dispossessing the plaintiff from the suit land.

Aggrieved thereby, defendant No. 3 as appellant preferred Other Class Appeal No. 46 of 2006, which was dismissed by the appellate Court affirming the trial Court's decree by judgment and decree dated 28.06.2007. Being aggrieved by the said judgment and decree of affirmance, the defendant No. 3 as petitioner moved this Court under its revisional jurisdiction and obtained the present Rule.

Mr. Mohammad Ali Zinnah, learned Advocate for the petitioner, submits that both the trial Court and the appellate Court failed to consider the evidence on record in its entirety and thereby arrived at an erroneous decision, resulting in failure of justice. He further submits that the plaintiff failed to challenge the registered power of attorney executed by Raton Chandra Das in favour of defendant No. 2, by which the latter executed the bainapatra in favour of defendant No. 3. Non-consideration of this material fact, according to him, has led to an error in the decision causing miscarriage of justice. He argues that the plaintiff, having no title, interest, or possession over the suit land, is not entitled to a decree of permanent injunction.

On the contrary, Mr. Md. Mosiul Alam, learned Advocate for the plaintiff-opposite-party No. 1, submits that the decisions of both the Courts below are based on concurrent findings of fact regarding the exclusive possession and prima facie title of the plaintiff over the suit land. He contends that such findings, being based on evidence, should not be interfered with in revisional jurisdiction.

Mr. Alam further submits that the plaintiff-opposite-party No. 1 obtained possession through Court process pursuant to execution of a decree, and the defendant No. 3 holds nothing but an unregistered

bainapatra, which conveys no title. Thus, both Courts rightly held that the plaintiff has both title and exclusive possession over the suit land and decreed the suit accordingly.

Having heard the learned Advocates for both sides and perused the revisional application along with the materials on record. It appears from the record that the plaintiff examined several witnesses in support of her claim of possession. Notably, PWs. 4 and 5 categorically deposed that on 16.09.2000, defendant No. 3 attempted to dispossess the plaintiff from the suit property. Both Courts below found the plaintiff to be in possession of and entitled to the suit land.

It is well-settled that where the first appellate Court affirms the findings of the trial Court, the revisional Court may interfere only if there is a manifest error of law, misreading or non-reading of evidence, or where the Courts below acted without or in excess of jurisdiction, or if their decision results in gross failure or miscarriage of justice.

In a suit for permanent injunction, the plaintiff is only required to establish prima facie title and actual possession. In the present case, the defendant against whom the decree is sought failed to establish any right, title, or possession over the suit land by adducing credible evidence. On the other hand, the plaintiff has successfully proved both her prima facie title and exclusive possession, which the Courts below accepted upon proper appreciation of evidence.

Upon hearing both sides and perusing the record, this Court finds that both the trial Court and the appellate Court delivered well-reasoned judgments founded on evidence. The learned Advocate for the petitioner has failed to show any misreading or non-reading of evidence, or any jurisdictional error in the impugned judgment. What

is sought is a re-appraisal of evidence, which is impermissible in the exercise of revisional jurisdiction under section 115 of the Code of Civil Procedure.

This Court finds no jurisdictional error or material irregularity in the impugned judgment and decree of affirmance. The concurrent findings of fact do not result in any miscarriage of justice.

Accordingly, **the Rule is discharged** without any order as to costs.

The office is directed to send down the lower Court's record together with a copy of this judgment at once.

(Justice Md. Toufiq Inam)

Sayed. B.O.